

BHTDAY WELFARE FOUNDATION

BYLAWS BOOK

DAY
DEVELOPMENT AND YOUTH
DAY



BYLAWS AND REGULATIONS

BHTDAY WELFARE FOUNDATION

(DAY FOUNDATION)

REG NO: U88900MP2023NPL068178

REGD ADDRESS: C/O Maharajpur Adhartal, 2 Patel Nagar, Ankita Parisar,
Maharajpur, Jabalpur, Madhya Pradesh 482004

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PART-1

NAME AND PURPOSE OF THE ORGANIZATION

Article -1: Name

The registered name of our Non-Profit Non-Governmental Organization is BHTDAY Welfare Foundation, commonly known as Development and Youth or D.A.Y. Foundation. Our social media handles, including our email account, operate under the name D.A.Y., which is an acronym derived from our registered name. We recognize the importance of adhering to the government-recognized name, and therefore, any organization-related e-handle that uses the acronym will clearly specify the registered name.

Article -2: Purpose

BHTDAY Welfare Foundation is a non-profit, non-governmental organization established by a group of youth with the aim of engaging in social work, particularly focusing on the development of children and youth. We organize regular initiatives to provide education to children living in slums and ensure they have access to basic necessities such as stationery, essential medical aid, and clothing. We also organize various events and launch initiative in field of youth development, including women empowerment, mental wellbeing, awareness programmes and many such.

The organization's motto is "Empowerment through education, Support through youth"

("शिक्षा से सशक्तिकरण, युवा से समर्थना") Our collective vision is to work together towards creating a better society for future generations to thrive in.

Our Focus – Education, Aid, Youth and Care

PART-2

MEMBERSHIP

Article 1: Membership Eligibility

1.1 The membership of the organization shall consist of individuals who meet the following criteria:

- i. The individual shall be 17 years of age or older.
- ii. Membership admission shall be in accordance with the rules and regulations defined herein.
- iii. Every member is required to contribute a non-refundable fund of Rs 100/- on the 15th of every month.
- iv. Membership can be obtained for a period of 3 months, for either temporary volunteering or full-time volunteering until resignation.

Article 2: Membership Register

2.1 The organization shall maintain a Membership Register at its registered office. The Register shall include the following details within 15 days after the admission of members or the cessation of membership:

- i. Name, address, Aadhar, DOB, and PAN number of the member/members.
- ii. Parents details
- iii. Date of admission of the members.
- iv. Date of cessation of membership, if applicable.
- v. All volunteers, upon completion of onboarding, are officially bound by the bylaws as organizational members.

Article 3: Cessation of Membership

3.1 Membership shall cease under the following circumstances:

- i. Upon the death of the member.
- ii. Upon written resignation by the member.
- iii. If a member fails to attend 2 out of 4 consecutive drives and 3-4 meetings per month of the general body of the society without prior notification.
- iv. If a member is found engaged in immorality, theft, mischief, gambling, or convicted in any criminal cases by the Government.
- v. If a member does not adhere to the instructions of the department head under which they work.

Article 4: Rights and Privileges of Members

Section A: Member Rights & Participation

- 1: Equal Participation: Every member has the right to engage in and contribute to the organization's activities, ensuring an inclusive and supportive environment for all.
- 2: Access to Resources: Members are entitled to participate in training, volunteer programs, and organizational initiatives that align with the NGO's mission.

Section B: Reporting Misconduct

- 1: If a volunteer witnesses any form of misconduct, harassment, or unethical behavior, they are encouraged to report the incident promptly.
- 2: Reports should be made to the assigned authority person designated by the organization, such as the Head of Human Resources or the Legal & Advocacy Unit.
- 3: The organization shall ensure all reports are handled with strict confidentiality, impartiality, and appropriate action.
- 4: Any member found violating ethical conduct or disrupting the organization's work may face corrective measures, including warnings or removal.

PART-3

BOARD OF MANAGEMENT

Section A: Legal Governance and Identity

1. The BHTDAY Welfare Foundation is legally registered under the Ministry of Corporate Affairs (MCA) with registration number U88900MP2023NPL068178.
2. Only two Directors are legally registered under MCA. These Directors are:

Mr. Shantanu Sen

Mr. Om Sen, the Founder and Executive Director, who holds permanent and sole authority over the governance, management, and all internal/external operations of the Foundation.
3. The NGO is also registered on the NITI Aayog's NGO-DARPAN portal, which acts as the official verification identity of the organization. Any individual or volunteer added to the DARPAN system holds no legal authority, and their presence or removal is entirely at the discretion of the Executive Director.

Section B: Central Management

1. Role and Purpose

Central Management consists of core functional heads responsible for overseeing the internal operations of the NGO. These positions are not legally registered under MCA, but they are governed by the internal bylaws and policies of the Foundation.

2. Confirmed Positions

The confirmed positions within Central Management include the following:

1. Head of Development and Programs
2. Head of Human Resources
3. Head of Finance
4. Head of Legal and Communication
5. Head of Social Media and Marketing
6. Hiring Executive
7. Outreach Manager

3. Appointment, Tenure, and Termination

Members are selected via the NGO's official hiring process, which includes an interview.

Appointments must be approved and finalized by the Executive Director, with input from the Board of Management.

Central Management members are required to sign:

- Tenure Letter

- Non-Disclosure Agreement (NDA)
 - Acceptance of Bylaws
- 1 Tenure is not permanent. The Executive Director has exclusive authority over termination or extension of tenure.
 - 2 Resignation requires a formal notice of at least 1 month in advance.

4. Documentation and Signatures

The Executive Director shall sign:

- Tenure Letters
- NDA Agreements
- Certificates of Recognition
- Appointment or Termination Orders

The Head of Human Resources shall sign:

- Experience Letters
- Letters of Recommendation (LOR)
- Department Notices and Internal Memos

Section C: City Management

1. Purpose

City Management is responsible for implementing the NGO's activities and programs in specific regions or cities.

2. Delegation of Authority

City Management volunteers are appointed to oversee the regional implementation of NGO activities.

City Management is directly answerable to the Board of Management, which consists of the department heads (Program and Development, HR, Finance, Legal, social media, etc.).

The Board of Management holds the authority to manage, direct, and monitor the activities of City Management Volunteers.

While the Executive Director holds the ultimate oversight responsibility, day-to-day operational control is delegated to the Board of Management.

3. Appointment and Termination

City Management members are appointed following the official hiring process.

Appointments are reviewed and approved by the Board of Management, in consultation with the Executive Director.

Section D: Appointment and Hiring Process

1. Both Central and City Management positions must go through a structured hiring process, which includes:

- An application form
- An interview process

- Final review and approval by the Executive Director and Board of Management
2. Final hiring and placement decisions rest solely with the Executive Director, while the Board of Management holds operational oversight of day-to-day activities.

Section E: Board of Management Volunteers (Not Legally Registered)

1. These volunteers support the functioning of the organization and assist in decision-making and strategic planning.
2. They hold no legal authority and serve as working members under the Executive Director's guidance.
3. The Executive Director has the exclusive right to appoint or remove any Board of Management volunteer at any time.

Section F: Operational Requirements for Central and City Management

1. Weekly Online Meetings

Central and City Management members are required to attend weekly online meetings scheduled by the Executive Director or the Board of Management.

The weekly meetings will serve as a platform for discussing ongoing projects, sharing progress updates, and addressing any operational concerns.

Non-attendance without prior notice or valid justification will lead to disciplinary actions.

2. Monthly Reporting

All Central and City Management members are required to submit a detailed monthly report by the end of each month, summarizing their activities, challenges faced, and future plans.

Reports should be submitted to the Executive Director and Board of Management for review.

3. Attendance at Drives

Attendance at drives organized by the NGO is compulsory for all Central and City Management members.

If a member fails to attend a drive without prior written approval or a valid reason, their membership and position may be terminated at the discretion of the Executive Director and Board of Management.

Section G - BHTDAY Legal, Justice & Advocacy Unit

- There are four major members of this unit who are in the position of promptly and impartially resolving differences and crises within the foundation.
- This unit guarantees strict confidentiality and impartial decision-making.

This unit is free to take all the decisions by its own, there will be no involvement of any other member of the foundation.

Section H: Advisors to the Organization

1. Definition:

Advisors are experienced individuals invited by the Executive Director to provide strategic guidance, mentorship, or domain expertise to the organization.

2. Role & Limitations:

- Advisors are not legally registered members of the organization under the MCA or any governing body.
- They do not hold voting rights, decision-making authority, or operational control.
- Their role is purely advisory and non-binding.
- They may participate in discussions, review projects, and offer input when consulted.

3. Appointment:

- Advisors may be appointed by the Executive Director based on their expertise, goodwill, or alignment with the Foundation's mission.
- Their term, scope of advice, and involvement will be defined informally by the Executive Director.

4. Confidentiality:

- Advisors are expected to respect the internal confidentiality of the Foundation's operations and may be asked to sign an NDA if working with sensitive information.

5. Termination:

- The Executive Director may revoke an advisory role at any time without formal notice.

PART – 4

MEETING

Article 1: Participant Conduct

- 1.1 All members are expected to conduct themselves with professionalism, respect, and discipline during meetings and discussions.
- 1.2 Personal biases, disrespectful language, or disruptive behavior will not be tolerated. All members must contribute to a positive and inclusive meeting environment.

Article 2: Meeting Procedures

- 2.1 All meetings shall follow a predetermined agenda, which must be shared with participants at least 24 hours prior to the meeting.
- 2.2 Meetings shall be conducted in a structured and time-bound manner, ensuring productive discussions and timely decisions.

Article 3: Voting Mechanisms

- 3.1 Decisions requiring votes shall follow a simple majority rule, unless otherwise specified.
- 3.2 Voting may be conducted through voice vote, show of hands, or digital polling, as deemed appropriate by the chairperson.
- 3.3 In case of a tie, the Executive Director shall have the casting vote.

Article 4: Roles and Responsibilities

- 4.1 The Chairperson (usually the Executive Director or assigned person) shall preside over all meetings, maintain order, and ensure that the agenda is followed.
- 4.2 A designated Timekeeper shall be appointed to monitor time allocation for each agenda item and ensure the meeting stays within the scheduled duration.
- 4.3 A Minutes Recorder shall document key points, decisions, and action items discussed.

Article 5: Member Participation and Discussion Protocol

- 5.1 Members are expected to actively participate in all meetings.
- 5.2 Only one member shall speak at a time, and interruptions are not permitted.
- 5.3 Discussions must remain relevant, respectful, and focused on the agenda.

Article 6: Decision-Making and Documentation

- 6.1 Decisions shall be made by consensus whenever possible. If consensus cannot be reached, a formal vote shall be conducted.
- 6.2 All decisions, discussions, and action items shall be clearly recorded in the meeting minutes and shared with all relevant members within 48 hours of the meeting.

Article 7: Inclusivity and Accessibility

- 7.1 The organization is committed to ensuring equal opportunity for participation, regardless of physical, regional, or digital limitations.
- 7.2 Reasonable accommodations shall be made to ensure accessibility for all members.

Article 8: Amendment of Meeting Procedures

- 8.1 These meeting protocols are binding and must be followed strictly by all members.
- 8.2 Any proposed amendment to these procedures must be submitted in writing at least 5 days prior to the next scheduled meeting.
- 8.3 Amendments shall require approval from the Executive Director and Board of Management with a majority vote.

Article 9: Misconduct and Consequences

- 9.1 Members must uphold professionalism and refrain from disrespecting fellow participants, making excuses for absence, or violating meeting decorum.
- 9.2 Violations may result in the following disciplinary actions:
 - Verbal Warning (first instance)
 - Written Warning (second instance)
 - Suspension of Meeting Privileges (third instance)
 - Termination from management or volunteer position (in severe or repeated cases)

All consequences will be determined by the Executive Director in consultation with the Head of Human Resources and concerned Department Head.

PART 5

ORGANIZATIONAL COMMITTEES AND DEPARTMENTS

The organization is structured around 7 departments, each open for volunteer admission and headed by department heads. The committees are as follows:

1. Creative Department:

- Develops the creative elements of events.
- Designs the event space and manages its overall aesthetic.
- Ensures all creative elements align with the event's theme and goals.
- Constantly develops new ideas to enhance the organization's engagement and interactive elements.

2. Logistic Department:

- Manages the logistics of events or drives.
- Coordinates transportation and parking logistics.
- Oversees the setup and teardown of events.
- Coordinates with vendors and ensures their preparedness for events.
- Manages overall event functioning and volunteer coordination.
- Ensures disciplinary functions are maintained throughout the event.

3. Corporate Department:

- Develops and manages relationships with sponsors and partners.
- Secures sponsorships and manages contracts.
- Maintain communication with sponsors and partners.
- Ensure sponsors receive agreed-upon benefits.

4. Social Media Department:

- Oversee the working of social media handles.
- Ensures creativity and engagement of social media handles.
- Prepares content for posting on social media.
- Develops graphics, animations, and designs for social media handles.

5. PR Department:

- Manage public relations for events.
- Handles social media accounts and promotes events.

6. HR Department:

- Handles recruitment and selection processes.

- Develops and implements HR policies and procedures.
- Manages Excel sheets and prepares annual and monthly reports for organization drives.
- Ensures accurate recording and analysis of drive progress and impact.
- Resolves employee relations issues and conflicts.

7. Education and Curriculum Department:

- Develop and manage the curriculum for childrens education.
- Track attendance and progress reports of children.
- Coordinate with the creative team for educational materials.
- The Education and Curriculum department oversees all teaching activities.
- Responsible for designing and managing the education syllabus.
- Organizes and conducts test series for students.
- Manages all other educational and academic- related functions.
- Speaker heads will be dealt under this section.

Additional Committees:

- **Legal Unit/ Legal Manager:**
 - Provides legal guidance and advice to the organization.
 - Ensures compliance with relevant laws and regulations.
 - Drafts and reviews contracts and legal documents.
 - Resolves legal disputes and handles litigation matters.
 - Offers advisory services to the organization and its stakeholders.
- **Health Care Manager:**
 - Monitors targeted slum kids' health, regulates timely health camps, and provides advisory roles if needed.
- **Drive Manager:**
 - Ensures proper, disciplined, and punctual conduct of drives, ensuring the safety and management of children.

PART-6

FINANCIAL MANAGEMENT

Article 1: Budgeting

1.1 Annual Budget

The organization shall prepare an annual financial budget at the beginning of each fiscal year, outlining anticipated revenues and expenditures aligned with the NGO's mission and operations.

The proposed budget shall be reviewed by the Head of Finance and approved by the Executive Director before implementation.

1.2 Budget Review

The Head of Finance, under the direction of the Executive Director, shall periodically review the budget to ensure proper utilization of funds and alignment with organizational priorities.

Any significant revisions to the budget shall require approval from the Executive Director.

Article 2: Financial Reporting

2.1 Regular Financial Reports

The Head of Finance shall be responsible for maintaining and submitting regular financial reports detailing income, expenses, and variances from the approved budget.

Reports shall be submitted to the Executive Director and reviewed at least once per quarter, or more frequently upon request.

2.2 Annual Financial Statements

The organization shall prepare annual financial statements in accordance with Generally Accepted Accounting Principles (GAAP).

These statements shall be subject to independent audit by a certified public accountant or a designated audit committee.

Article 3: Audits

3.1 Independent Audit

An independent audit shall be conducted annually to verify the financial health and legal compliance of the organization.

The audit must be carried out by a qualified chartered accountant or a registered auditing firm appointed by the Executive Director.

3.2 Audit Committee

If required, the Executive Director may appoint an Audit Committee, consisting of individuals from the Board of Management or external advisors, to oversee the audit process and ensure accountability.

Article 4: Fund Management

4.1 Designation of Funds

The organization may create designated funds for specific projects, campaigns, or programs.

All designated funds must be clearly recorded and managed by the Head of Finance, with transparency and accountability.

4.2 Investment Policies

The Executive Director shall determine investment practices for any surplus or reserve funds, in consultation with the Head of Finance, ensuring:

- Low-risk, ethical, and mission-aligned investments
- Compliance with applicable legal and financial regulations

Article 5: Restrictions on Fund Use

5.1 Purpose Restrictions

All funds shall be utilized solely for activities and purposes that are consistent with the organization's stated mission and objectives, as per its registration and bylaws.

5.2 Donor Restrictions

Any restricted donations shall be used strictly as per the donor's instructions.

The organization shall not accept funds from the following sources:

- CSR funds under the CSR-1 framework
- Corporate donations with conditions that influence internal policy or direction
- Limited Liability Partnerships (LLPs)
- Political parties or political affiliates

Any entity that compromises the NGO's neutrality, values, or legal standing

5.3 Legal Compliance

All financial practices, including spending and reporting, shall fully comply with:

- Indian Income Tax laws
- FCRA (Foreign Contribution Regulation Act), if applicable
- State NGO regulations and grant agreements

Any misuse of funds may result in termination, legal action, or blacklisting of the members responsible.

PART - 7

AMENDMENTS

1. Proposal

Any member of the organization may propose an amendment to the bylaws in writing to the Board of Directors.

2. Board Review

The Board of Directors or a Bylaws Committee shall review the proposed amendment and draft the necessary changes, ensuring alignment with the organization's mission and legal requirements.

3. Member Notification

The proposed amendment shall be communicated to all members of the organization, along with a summary of the suggested changes, at least 10 days prior to the meeting for discussion.

4. Discussion

Sufficient time shall be provided for member discussion and questions regarding the proposed amendment, either at a general meeting or via written communication.

5. Voting

The proposed amendment shall be put to a vote during the scheduled meeting, using a method of voting approved by the Board of Directors.

6. Majority Approval

The amendment shall be adopted with majority approval (simple majority of members present and voting) unless otherwise specified in these bylaws.

7. Documentation

Once adopted, the amendment shall be documented, and the bylaws shall be updated accordingly. All members shall receive an updated copy of the bylaws within 10 days.

8. Legal Compliance

The organization shall ensure that any amendments made to these bylaws comply with applicable local, state, and federal laws and regulations.

9. Periodic Review of Bylaws

The bylaws shall be **reviewed and updated at least once every 6 months** by the **Executive Director**, in consultation with the Board of Management (if applicable).

The **authority to initiate amendments** lies with the Executive Director, who may also accept suggestions from members for review.

This ensures the organization's internal policies evolve with time and stay compliant with legal, ethical, and operational standards.

PART - 8

DISSOLUTION

1. Distribution of Assets

In the event of the dissolution of the organization, its assets shall be distributed to other non-profit organizations with similar missions as specified in the bylaws, to ensure continued service to charitable purposes.

2. Transfer to Governmental Body

If required by applicable laws, assets may be transferred to a relevant governmental body or agency overseeing charitable activities upon dissolution of the organization.

3. Charitable Allocation

Any remaining resources after dissolution shall be dedicated to specified charitable purposes outlined in these bylaws, supporting activities aligned with the organization's mission.

4. Prohibition on Private Benefit

The distribution of assets upon dissolution shall be made exclusively to non-profit purposes. No assets shall be distributed to individuals or private entities, ensuring resources exclusively benefit the public.

5. Debt Settlement and Liquidation

Before distributing assets, the organization's debts and liabilities shall be settled. Any remaining assets shall be distributed in accordance with the provisions of these bylaws.

6. Approval by Authorities

Dissolution and asset distribution shall be subject to approval by relevant legal authorities or regulatory bodies overseeing non-profit organizations.

PART - 9

CONFLICT OF INTEREST

Purpose

This policy ensures transparency and ethical conduct within the BHTDAY Welfare Foundation, addressing potential conflicts of interest among all decision-makers.

Scope

This policy applies to all individuals involved in decision-making roles, including Board Members, Officers, Employees, and Volunteers.

Policy

1. Disclosure

All members, officers, and staff must disclose any financial interest or material affiliation that could potentially conflict with the interests of the organization.

2. Annual Declarations

All relevant individuals are required to submit an annual declaration of potential conflicts, which shall be reviewed by the Board of Directors.

3. Review and Recusal

The Board of Directors shall review any disclosed conflicts and determine whether the individual should recuse themselves from decisions related to the conflict.

4. Documentation

All conflict-related disclosures and resolutions must be properly documented and retained in the organization's records.

5. Resolution

Conflicts will be resolved in the best interest of the organization, and if necessary, corrective action will be taken.

6. Violations

Violations of this policy may result in disciplinary action, including reprimand, suspension, or removal from the Board or other positions.

7. Review

The conflict-of-interest policy will be reviewed annually by the Board of Directors, and any amendments will be promptly communicated to all members.

8. Non-Disclosure Agreement (NDA)

All members must adhere to a confidentiality agreement, ensuring that information discussed within the organization is not disclosed outside unless required by law.

PART - 10

NON-DISCRIMINATION

Article 1: Policy Statement

1.1 Non-Discrimination

The organization is committed to creating an inclusive and welcoming environment for all members, volunteers, employees, and beneficiaries. The organization does not discriminate on the basis of race, color, religion, gender, sexual orientation, gender identity or expression, birth origin, age, genetic information, disability, or any other characteristic protected by applicable law.

Article 2: Implementation

2.1 Programs and Services

The organization shall ensure that all individuals are treated with respect and dignity in the delivery of its programs and services, irrespective of their background or characteristics.

2.2 Employment Practices

The organization will adhere to non-discriminatory practices in all aspects of employment, including but not limited to hiring, promotion, termination, compensation, and access to training.

Article 3: Compliance

3.1 Legal Compliance

The organization will comply with all applicable federal, state, and local laws and regulations regarding non-discrimination.

3.2 Reporting and Addressing Discrimination

Any individual who believes they have been subjected to discrimination based on any protected characteristic is encouraged to report the incident promptly to the Board of Directors.

The organization is committed to promptly investigating all complaints and taking appropriate corrective action.

PART - 11

RECORDKEEPING AND ACCESSIBILITY

Article 1: Maintenance of Records

1.1 Responsibility

The Secretary and Human Resources (HR) Department shall be jointly responsible for maintaining all organizational records.

1.2 Types of Records

- Organizational records include, but are not limited to:
- Meeting minutes
- Financial statements
- Personnel records
- Legal documents
- Contracts
- Any other records required for legal compliance.

1.3 Secure Storage

All records shall be securely stored, whether in physical or digital formats, with adequate measures taken to ensure their safety and confidentiality.

Article 2: Accessibility

2.1 Authorized Access

Access to records shall be restricted to authorized personnel, including members of the Board of Directors, officers, and individuals designated by the Board for specific purposes.

2.2 Request for Access

Any member of the Board or authorized personnel seeking access to specific records may submit a written request to the Secretary or HR Department.

2.3 Timeline for Access

The organization shall make reasonable efforts to provide access to requested records within 10 business days from the date of the request.

Article 3: Record Retention

3.1 Retention Periods

The organization will establish record retention policies to comply with legal requirements and best practices.

3.2 Destruction of Records

Records no longer required for legal, regulatory, or organizational purposes may be destroyed following the established retention policies.

Article 4: Data & Access Surrender Upon Exit

4.1 In the event of removal, resignation, or termination of any Board of Directors member or Management Volunteer, the individual must:

- Immediately return or transfer all organizational data, access rights, credentials, and files (Google Sheets, documents, email accounts, drives) that were assigned to them.
- Submit all documents they maintained or were responsible for as per their department head or Executive Director's instructions.

Failure to do so within 3 working days shall be treated as a breach of trust and may result in formal legal action or blacklisting.

4.2 Misuse of Data, Passwords, or Organizational Property

- Any unauthorized use, sharing, deletion, manipulation, or extraction of sensitive data, official documents, internal records, Google Sheets, passwords, social media handles, or email accounts is considered a serious violation of organizational integrity.
- Access is granted solely for official tasks. Sharing login details, exporting data for personal use, or using internal platforms for personal gain is strictly prohibited.
- If any individual is found to have misused or mishandled organizational data, they shall face:
 - Immediate termination from the organization.
 - Permanent blacklisting from all future activities.
 - Legal action under Indian IT Act and IPC Sections related to data theft and breach of trust.

Article 5: Validity of Digital Communication

Emails, official WhatsApp messages, Google Forms, and other digital communications used by the Foundation shall be considered valid and legally acceptable means of documentation under the Information Technology Act, 2000.

PART - 12

LEGAL COMPLIANCE

Article 1: General Compliance

The organization is committed to full compliance with all applicable local, state, and federal laws and regulations.

Article 2: Legal Review

The Board of Directors shall undertake regular legal reviews at least annually to ensure that the organization's activities, policies, and procedures remain aligned with current legal requirements.

Article 3: Reporting Requirements

The organization shall ensure timely reporting and submission of all required documents to relevant authorities at the local, state, and federal levels.

Article 4: Legal Counsel

The organization may engage legal counsel to provide guidance on matters pertaining to compliance with laws and regulations at the local, state, and federal levels

Article 5: Jurisdiction

Any legal disputes, actions, or proceedings arising under or related to the functioning of the organization shall fall under the exclusive jurisdiction of the competent courts located in Jabalpur, Madhya Pradesh.

PART- 13

EVENT MANAGEMENT

Article 1: Oversight and Responsibility

- 1.1 The planning, coordination, and execution of all events organized by the BHTDAY Welfare Foundation shall be entrusted to the Central Management Team, consisting of department heads and core volunteers.
- 1.2 Each department head shall bear the responsibility for the well-being, behavior, and decorum of their respective departmental volunteers during the event.
- 1.3 Select volunteers may be assigned leadership and supervision roles, ensuring discipline, decorum, and a supportive atmosphere throughout the event. They shall serve as the primary points of contact for managing volunteer conduct and public interactions.

Article 2: Departmental Significance and Assigned Responsibilities

- 2.1 All departments of the Foundation shall hold a crucial role in the planning and execution of events, including but not limited to:
 - Creative and Media Support
 - Public Relations and Outreach
 - Education and Curriculum Coordination
 - Logistics and Resource Management
 - Health and Safety Monitoring
 - Volunteer Coordination
- 2.2 Department heads must ensure that their teams are diligently fulfilling their assigned responsibilities, maintaining interdepartmental coordination and ensuring timely delivery of tasks.

Article 3: Conditions for Event Conduct

- 3.1 No event shall be organized without the prior unanimous approval of the Central Management Team, under the direction of the Executive Director.
- 3.2 Events shall only be sanctioned when they are:
 - Aligned with the organization's mission and values
 - Considered essential for the personal and educational development of the children and beneficiaries
 - Supported by sufficient resources and volunteer capacity
- 3.3 Execution of the event shall be contingent upon effective coordination among departments and active participation from volunteers. Lack of engagement or mismanagement may result in cancellation or postponement.

Article 4: Objectives and Purpose of Events

- 4.1 Events may be organized with the purpose of fostering youth engagement, promoting volunteerism, and strengthening the community's connection with the Foundation's mission.

4.2 Certain events shall be designed to:

- Promote social awareness and education
- Address important youth-focused or community issues
- Encourage dialogue, creativity, and leadership among the participants

Article 5: Principles and Fundamental Objectives

5.1 The guiding principles for all events shall center around the holistic development of children, ensuring they benefit emotionally, intellectually, and socially.

5.2 Events shall aim to:

- Recognize and promote the talents and achievements of children
- Provide platforms for skill development, creativity, and public engagement
- Foster a sense of pride, motivation, and confidence among participants

5.3 An integral component of event design shall be the communication of essential social messages, helping raise awareness among the youth on pressing societal issues and encouraging responsible citizenship.

PART - 14

VOLUNTEER ENGAGEMENT AND DRIVE MANAGEMENT

Article 1: Punctuality and Attendance

- 1.1 All volunteers are required to report for the weekly educational drive by 8:00 AM sharp.
- 1.2 Entry will be strictly prohibited after 8:15 AM, regardless of the reason, unless prior approval is obtained from the present authority.
- 1.3 Repeated late arrivals may result in disciplinary actions, including suspension from future drives.

Article 2: Behaviour and Professionalism

- 2.1 All volunteers, coordinators, and participants must maintain a respectful, disciplined, and courteous demeanor towards one another and especially towards authority figures and team leads.
- 2.2 Disruptive, aggressive, or disrespectful behavior shall be addressed immediately and may result in warnings or removal.

Article 3: Dress Code

- 3.1 Volunteers must be appropriately dressed in modest and respectful attire.
- 3.2 Sunglasses are not permitted during the drive unless for medical reasons, with prior approval from the HR Department or Drive Lead.

Article 4: Use of Mobile Phones

- 4.1 The use of mobile phones during drives is strictly prohibited.
- 4.2 Violations will be met with a three-strike warning system administered by the HR Department.
- 4.3 In emergency situations, volunteers must inform the present authority, step away from the activity, and only then use their phone.

Article 5: Post-Drive Conduct

- 5.1 Once the drive concludes, volunteers must vacate the premises promptly.
- 5.2 Loitering, informal gatherings, or personal conversations within the premises are discouraged.
- 5.3 All volunteers must follow the instructions of the assigned authority until departure.

Article 6: General Conduct During the Drive

- 6.1 Volunteers are expected to be fully present, attentive, and compliant with instructions.
- 6.2 During teaching or speaking sessions, volunteers must ensure that children are engaged, attentive, and not distracted.
- 6.3 Volunteer engagement is essential to maintaining discipline and learning outcomes for children.

Article 7: Authority of Coordinators

- 7.1 The instructions of assigned coordinators and management heads must be strictly followed.
- 7.2 Failure to comply with coordinator directives may result in temporary or permanent suspension from the drive or volunteering duties.

Article 8: Photography and Videography Policy

- 8.1 Photography or video recording is strictly prohibited during the drive unless it has been explicitly approved by the Team Leads or Social Media Head for official documentation purposes.
- 8.2 Unauthorized content sharing on social media will be treated as a breach of confidentiality and volunteer agreement.

Article 9: Code of Conduct with Children

- 9.1 Volunteers must maintain professional, compassionate, and respectful boundaries with all children.
- 9.2 Physical punishment, shouting, intimidation, or favoritism is strictly prohibited. Any such behavior will result in immediate disciplinary action and potential termination.

Article 10: Zero Tolerance for Discrimination

- 10.1 The organization adopts a zero-tolerance policy for any form of discrimination, harassment, or inappropriate remarks based on caste, gender, religion, region, language, or appearance.
- 10.2 Any violation will lead to immediate investigation and strict disciplinary action, including permanent dismissal from the organization.

Article 11: Feedback and Grievance Redressal

- 11.1 Volunteers are encouraged to share feedback, suggestions, or grievances after the drive.
- 11.2 A dedicated Google Form will be accessible via a QR code displayed at the drive location and shared later in the official WhatsApp group.
- 11.3 All submissions will be reviewed by the HR Department and confidentiality will be maintained in all matters.
- 11.4 Urgent matters should be reported to the present authority or HR head immediately.

PART - 15

VOLUNTEER ONBOARDING, CERTIFICATION & DOCUMENTATION

Article 1: Onboarding and Hiring Process

- 1.1 All individuals interested in volunteering must apply through the official volunteer application form available through the Foundation's communication channels.
- 1.2 After submission, selected applicants shall be required to attend a formal orientation session, during which they are introduced to:

The mission, values, and structure of the organization
Their responsibilities

A summary of relevant bylaws and behavioral expectations

- 1.3 Following orientation, volunteers are assigned to a suitable department based on skills, interest, and need.
- 1.4 Once department allocation is complete, the volunteer is added to the official NGO WhatsApp group or equivalent official platform.
- 1.5 From Day 1 of addition to the group, the individual is recognized as an active volunteer of the BHTDAY Welfare Foundation and shall be fully bound by the organization's bylaws, including all ethical, disciplinary, and operational clauses.

Hiring Process of the NGO:

1. Frequency of Hiring: The hiring process will take place twice a month, conducted by a hiring team appointed by the Board of Management.

2. Recruitment Schedule:

1st Batch: 1st to 15th of Every Month

- **First Application Period:** Applications for the recruitment process will be accepted from the 8th to the 10th of every month.
- **Information and Form Distribution:** On the 11th, applicants will receive information about the organization, welcome text and the social media handle of the organisation
 - On 12th hiring steps will be shared with the applicant along with the Google form with a questionnaire to fill out.
- **Conduction of Orientation:** On the 13th, orientation will take place where newly admitted volunteers will be required to select a department of their choice based on their skills and abilities to work.
- **Reminder:** On 14th, a reminder will be sent to the volunteers to choose their department.
 - If a volunteer fails to select a department within the deadline, their application will be put on hold until the next recruitment period.
- **Collection of details:** On 15th, volunteers detail will be collected and will be shared with the respective department heads.

2nd Batch: 26th to 30th of Every Month

- The same steps as the 1st batch are followed from the 26th to the 30th of the month.

3. Selection Criteria: Selection of volunteers will be based on their skills, abilities, and alignment with the mission and values of the NGO.

1. Department Selection: New volunteers are required to select a department of their choice based on their skills and abilities. The final decision regarding department placement will be made by the hiring team.

2. Communication: Applicants will be informed of the status of their application and the outcome of the recruitment process in a timely manner.

Article 2: Volunteer Certification

2.1 Volunteers who complete their required period of service and duties satisfactorily may be issued an official Certificate of Appreciation or Participation.

2.2 All certificates must be:

Reviewed and approved by the Head of Human Resources

Signed by the Executive Director

Issued only to volunteers who have complied with organizational policies

2.3 The certificate shall include the volunteer's name, duration of involvement, department, and contribution type.

Article 3: LOR and Experience Letter Policy

3.1 Volunteers who request a Letter of Recommendation (LOR) or Experience Letter may be issued one only if they:

Have volunteered consistently and respectfully

Have no outstanding disciplinary issues

Have served the minimum duration as determined by HR policy

3.2 All LORs and experience letters:

Shall be signed by the Head of Human Resources

Must be approved by the Executive Director prior to issuance

3.3 No LOR or experience letter shall be issued without proper records, contribution validation, and clearance from the HR department.

PART – 16

VOLUNTEER ETIQUETTES AND CONDUCT

Article 1: Volunteer Categories

1.1 General Volunteers

Engaged in various organizational tasks and drives, contributing time and skills to support the NGO's mission.

1.2 Board of Management Volunteers

Department heads are responsible for operational oversight and coordination, in addition to volunteer duties.

1.3 Board of Directors Volunteers

Volunteers with strategic and governance responsibilities, participating in long-term planning and policy review.

Article 2: Drive Conduct and Responsibilities

(Applicable to Board Members, Board of Management & General Volunteers)

2.1 All volunteers must:

- Follow the instructions of Drive Managers, Coordinators, and Speaker Heads.
- Participate actively in assigned tasks and child engagement during the drive.
- Submit any suggestions formally to the management team via email or scheduled meetings.
- Communicate respectfully and maintain formal tone in all verbal and written exchanges.
- Avoid recording or photography unless permitted by authorized leads.
- Maintain strict professional conduct with children — no shouting, punishment, or favoritism.
- Uphold zero tolerance for discrimination, harassment, or inappropriate remarks.

Article 3: Meeting Decorum

3.1 All volunteers (Board, Management, General) must:

- Attend meetings regularly and be punctual.
- Maintain respectful and unbiased communication.
- Ensure equal participation and support inclusive dialogue.
- Share minutes of meetings (if presiding) for transparency.

3.2 Board of Management and Board of Directors:

- Must act as role models during meetings and events.
- Are expected to lead with integrity, engage actively, and ensure decorum.
- Must notify the presiding authority for absences in advance with valid reason.

- Missing 2 consecutive meetings without approval may lead to formal warning.

Article 4: Department Engagement (For Board of Management)

4.1 Board of Management members:

- Are responsible for managing their assigned department and ensuring volunteer activity.
- Must respect the authority of the department head, regardless of personal designation.
- Should ensure task completion, communication discipline, and respect internal hierarchy.
- All internal suggestions must be shared in writing via official channels.

Article 5: General Volunteer Responsibilities

5.1 General volunteers must:

- Actively participate in projects, drives, and meetings.
- Maintain professionalism in both online and offline environments.
- Submit assigned tasks on time and engage with their team regularly.
- Offline volunteers must attend at least 2 drives per month; online volunteers must complete weekly tasks.
- Engage in departmental WhatsApp groups and collaborate constructively.

Article 6: Warning and Removal System

6.1 A 3-step warning system shall apply to all volunteers:

- If a volunteer misses 2 out of 4 drives per month, warning 1 is issued.
- If they fail to respond to the warning within 24 hours, they may be removed from the organization.
- Continued inactivity or violation of conduct will lead to immediate dismissal without further notice.

6.2 Warnings for Absences

Issued by the HR Department via direct message or email.

Three total warnings without adequate improvement = automatic removal.

Final Note:

These etiquettes and policies are binding on all volunteers, including the Board of Directors and Board of Management.

Violations of any section may result in strict disciplinary action, including removal from the organization.

PART - 17

MANAGEMENT VOLUNTEER ETIQUETTE

Article 1: Management Volunteer Etiquette

1.1 Non-Disclosure Agreement (NDA)

All volunteers appointed to management positions (including department heads, assistant heads, drive managers, speaker heads, or any role involving internal operations) are mandated to sign a Non-Disclosure Agreement (NDA). This ensures the protection and confidentiality of sensitive organizational data.

1.2 Exclusivity and Organizational Integrity

Volunteers currently serving as founders, directors, or board/management members of any other NGO are not eligible to hold any management-level role within BHTDAY Welfare Foundation. This rule protects organizational integrity, prevents conflict of interest, and promotes focused leadership.

1.3 Adherence to Organizational Policies

All management volunteers are required to comply with:

- The terms outlined in their NDA
- The code of conduct, working model, and volunteer policies of the NGO
- Any regulatory and legal frameworks governing charitable and non-profit organizations in India

Violations may lead to disciplinary or legal action.

1.4 Management Meetings

Weekly Meetings:

Monday – Central Management Meetings

Tuesday – Delhi Management Meetings

Wednesday – Indore Management

Thursday – Jabalpur Management

Monthly Combined Meeting:

Last Thursday of each month – All Management Members

Attendance is compulsory, and prior notice must be given in case of absence.

1.5 Professionalism and Conduct

All management volunteers are expected to:

Maintain respectful communication, professionalism, and inclusive dialogue

Handle disagreements constructively and in accordance with the Conflict Resolution Policy

1.6 Relationship Conduct & Professional Boundaries

Management volunteers must **not engage in personal relationships (romantic or inappropriate close associations)** within the internal teams that could disrupt work or cause conflicts.

Such relationships must **not be exposed publicly** or used to influence internal decisions, dynamics, or activities.

Any such situation must be disclosed confidentially to the Executive Director if it may interfere with professional

conduct.

Coming between official hierarchies or management structures is strictly prohibited.

1.7 Defamation, Public Misconduct & Legal Action

Any volunteer, intern, or management member found defaming the organization publicly, making false claims, leaking internal matters, or tarnishing the NGO's image on social media or elsewhere will be subject to immediate termination.

The organization reserves the right to initiate legal action under IPC defamation laws (Section 499/500) or other applicable statutes.

Volunteers are expected to protect the reputation, dignity, and confidential nature of the Foundation at all times.

Article 2: Working Structure of the NGO

2.1 Tenure-Based Operations

The NGO shall function on a three-tenure model per year, each tenure lasting four months.

During each tenure, the workload is split as follows:

- 60% Offline activities
- 40% Online tasks

2.2 Monthly Activity Schedule

First, Second & Third Months:

Week 1: Educational Drive

Week 2: Health Care Survey of children in slums

Week 3: Online Event + Drive

Week 4: Activities for children + Drive

Fourth Month:

- No online event
- Offline cultural/community event

2.3 Minimum Working Requirement

Volunteers are required to contribute at least 60% of the total working hours assigned during each tenure. Those who fail to meet this benchmark without valid reason may face review of their role or removal from the Foundation.

2.4 Compliance and Time Reporting

Volunteers must adhere to the monthly schedule and report attendance, hours, and tasks through prescribed forms or systems.

Falsification or non-compliance will be considered a violation of commitment.

2.5 Feedback and Evaluation

Periodic evaluations will be conducted by the management team to assess:

Volunteer performance

Project implementation effectiveness

Departmental coordination

Feedback from volunteers is encouraged and will be considered for continuous improvement.

2.6 Flexibility Clause

The NGO reserves the right to make adjustments to the schedule or shift working percentages (offline/online) to accommodate unforeseen challenges or to optimize project delivery.

2.7 Transparency and Accountability

The Foundation is committed to:

Transparent communication on all working procedures

Public accountability of volunteers and leadership

Ensuring fair treatment and recognition of every contribution.

PART-18

INTERNSHIP BYLAWS

Article 1: Scope and Applicability

These bylaws apply to **all interns** participating in any internship program organized by BHTDAY Welfare Foundation. These rules are legally and ethically binding from the day of joining.

Article 2: Tasks and Completion Criteria

- The internship includes:
 - **6 Online Tasks**
 - **2 Compulsory Offline Drives**
- **Completion of all 8 tasks** is mandatory to be eligible for:
 - **Certificate of Completion**
 - **Letter of Recommendation (LOR)**
 - **Mentor Report**
- Incomplete internships or failure to attend offline tasks will lead to **non-issuance of certificates or LORs**.

Article 3: Communication Protocol

- All communication must be through the **official support group**.
- Any doubts/questions must follow this format:
Name | Intern ID | Specific Doubt
- Messages without this format **will not be entertained**.
- Spamming, informal language, or unprofessional communication will result in a **formal warning**.

Article 4: Work Ethics and Originality

- **All work must be original.**
 - **Plagiarism**, including copy-paste from the internet or use of ChatGPT or any AI-generated content **without personal effort**, is strictly prohibited.
- Any intern found guilty of unethical submission will receive:
 - **Immediate warning**
 - **Cancellation of internship (on repetition)**
 - **No certificate/LOR issued**

Article 5: Crowdfunding Policy

- All interns must participate in the **crowdfunding task**.
- The **collected amount must be directly transferred to the official organization account only**.
- Personal handling of funds, UPI, wallets, or collection into **personal accounts is strictly prohibited**.

Article 6: Legal Liability for Misuse of Funds

- Any intern found collecting or keeping funds in their personal account will face:
 - **Immediate termination from internship**
 - **Permanent blacklisting from all NGO programs**
 - **Legal action under Indian Penal Code for fraud or misappropriation of charitable funds**
- The organization is **not liable** for any misdeeds done by the intern in this regard. Interns are fully responsible for the legitimacy of funds handled by them.

Article 7: Adoption and Enforcement

- These bylaws are officially adopted as **PART-19** of the **BHTDAY Welfare Foundation Bylaws**.
- They hold **equal authority** and must be followed like any other internal regulation.
- Violations of these bylaws shall be dealt with strictly and may involve legal, academic, or professional consequences

PART - 19

ADOPTION OF BYLAWS AND SIGNATORIES

Article 1: Ratification and Adoption

- 1.1 These bylaws of the BHTDAY Welfare Foundation have been reviewed, accepted, and adopted by the undersigned as the official governing document of the organization.
- 1.2 The bylaws shall take effect from the date of signing and shall remain binding on all members, volunteers, management teams, and stakeholders associated with the Foundation.
- 1.3 Any amendments to these bylaws shall follow the procedures outlined in Part 8: Amendments and shall be updated in this document accordingly.

Article 2: Binding Commitment

- 2.1 All volunteers, including Board of Directors, Board of Management, City Management, and General Volunteers, are required to adhere to the bylaws from the moment they are officially inducted into the organization.
- 2.2 By signing below, the Executive Director and the Central Management acknowledge their responsibility to uphold, enforce, and comply with all provisions of these bylaws.

Article 3: Signatories

These bylaws have been adopted on this ____ day of _____, 20, and signed below as a mark of official approval.

Board of Management Acknowledgment

NAME	Designation	Date	Signature
Niharika Vasvani	Head of Human Resource		
Aditi Tiwari	Head of Development & Program		
Khushi Tandan	Head of Legal & Communication		
Vaibhav Sharma	Head of Finance		
Radhika Umre	Head of Social Media & Marketing		
Gunika Upadhyay	Outreach Manager		
Khushali Tak	Hiring Executive		
Vinayak Khandelwal	Witness		

Executive Director

Name: Om Sen

Designation: Founder & Executive Director

Signature: _____

Date: _____





OMS EN
Founder & Executive Director

By adopting this article, the organization formally acknowledges and ratifies these bylaws as
the guiding principles for its governance and operations
